

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.
Respondents & Third-Party Complainants

v.

SAMSUNG ELECTRONICS COMPANY, LTD.,
Third-Party Respondent.

**COMPLAINANT’S SECOND MOTION
FOR ENLARGEMENT OF TIME**

Complainant Samsung Electronics America, Inc. (“Complainant” or “SEA”), by their undersigned counsel, respectfully submits this Second Motion for Enlargement of Time. In accordance with 46 C.F.R. § 502.71, Counsel for SEA met and conferred with Respondents Orient Overseas Container Line, Limited and OOCL (Europe) LTD, (collectively, “Respondents” or “OOCL”) on this subject Motion earlier today, and OOCL has advised that they will oppose the Motion.

I. FILING DATE AND REASONABLE GROUNDS

Pursuant to 46 C.F.R. § 502.102(a), motions for enlargement of time “may be granted upon a showing of good cause” if “received at least seven (7) days before the scheduled filing date.”

“Motions filed less than seven (7) days before the scheduled filing date may be considered where reasonable grounds are found for the failure to meet this requirement.”

Complainant respectfully submits that reasonable grounds exist for the failure to meet the requirement of filing less than seven days before the scheduled document production date in this instance. SEA filed its original Motion for Enlargement of Time on Sept. 23, 2025 (Doc. 81). Sept. 23rd is seven days in advance of the deadline of September 30th, which is the current deadline for the production of documents, and was the sole focus of the Motion for Enlargement of Time (Doc. 81) as well as SEA’s subject Motion. Earlier today, on Sept. 30, 2025 (Doc. 87) the Presiding Officer issued an Order Denying Complainant’s Motion for Enlargement of Time Without Prejudice. That Order states that the Motion for Enlargement of Time was denied without prejudice on the basis that the duty to confer was not satisfied. That ruling appears to be based on a misunderstanding of the conversations that occurred between the Parties (SEA and OOCL) regarding SEA’s Motion for Enlargement of Time. Counsel for Complainant attaches as Exhibit 1, a true and accurate copy of the correspondence between the Parties relating to the original Motion for Enlargement of Time (Doc. 81). The Parties discussed a possible Joint Motion for Enlargement of Time on September 17, 2025 at a meet and confer conference dealing with discovery deficiencies. Counsel for SEA provided a draft Joint Motion for Enlargement of Time on Monday, Sept. 22nd. On Sept. 23rd, Counsel for SEA called and left a voicemail with Mr. Raleigh regarding the proposed Joint Motion for Extension of Time but was notified by Mr. Raleigh’s voicemail that he was out of the office for the day. Counsel for SEA followed up with an email which advised his understanding that Mr. Raleigh was out of the office for the day, but requesting any further comments OOCL may have on the Motion for Enlargement of Time. At 4:18pm ET on Sept. 23rd, Counsel for SEA received a call from Mr. Raleigh of Cozen O’Connor

advising that OOCL was unable to provide any comments or feedback regarding the Motion for Enlargement of Time on the basis that the law firms of Cozen O'Connor and Jeffrey/Fenneman Law + Strategy, PLLC were co-counsel to OOCL and thus, could not comment independently, and needed to confer between themselves but were unable to do so in light of the observance of Rosh Hashanah. Counsel for SEA then advised OOCL's counsels that it would proceed with filing the Motion for Enlargement of Time independently.

Accordingly, the parties were unable to confer on the Motion for Enlargement of Time (Doc. 81) in light of the religious holiday, which prevented OOCL's co-counsels from providing any comments on the Motion. The subsequent Order Denying the Motion for Enlargement of Time on the basis of a failure to satisfy the Duty to Confer (46 C.F.R. § 502.71(a)) has necessitated this Second Motion for Enlargement of Time. Thus, considering that Complainant did satisfy its duty to meet and confer in connection with the original Motion for Enlargement of Time (Doc. 81) and the Order denying the Motion for Enlargement of Time was without prejudice, there are reasonable grounds for the filing of this Motion less than seven (7) days before the scheduled due date of Sept. 30, 2025.

II. SEA ENLARGEMENT OF TIME REQUEST AND APPLICABLE BACKGROUND

With respect to the substance of the subject Motion, SEA requests an enlargement of time to the discovery and procedural schedule in the amount of 1 month, for the completion of document production and review for both parties and the avoidance of a dual-track discovery and procedural schedule.

As set out below and as noted in the Joint Status Report filed on September 2, 2025, the volume of data necessary to prove the allegations in this matter are voluminous, the analysis is transaction specific, and the Parties require additional time for the production and review of the

exchanged documentation. On June 26, 2025, the Parties filed a Joint Status Report (Doc. 60, “JSR1”) which expressed that requiring the completion of discovery within the 150-day standard noted in the Federal Maritime Commission Rules does not provide a realistic timeline for a case such as this, in light of the work which the Parties must complete and the complex nature of the required container-by-container analysis.

On August 5, 2025, the Presiding Officer acknowledged in his Order that “as long as the parties remain diligent in moving discovery forward, I am amenable to extending the discovery deadlines if necessary. The Parties, however, will need to justify any extension requested, and provide details supporting the request.” (Doc. 66).

III. CURRENT STATUS OF DISCOVERY AND JUSTIFICATION FOR EXTENSION

Voluminous Documentation

The Commission’s Presiding Officers have been very sensitive and responsive to the need for full factual development in cases such as this, where the amount at stake is substantial. There are approximately 4,438 charges at issue with SEA’s claims totaling more than \$14.3 million dollars, not including prejudgment interest. Establishing liability and defenses requires a container-by-container analysis that ties each charge to the actual sequence of operational events. The factual record necessary to pursue and defend this matter in light of the number of charges involved is both extensive and complex and this request is not unique, but rather consistent with multiple other similar proceedings.

Specifically, SEA’s first tranche of documents responsive to Respondents’ requests has been produced today in excess of 45,000 documents, composed of 59,844 pages. An additional two million, seventy-four thousand, seven hundred and nineteen (2,074,719) documents have been identified in connection with OOCL’s requests, and which need to be reviewed for responsiveness

prior to production. Despite the diligent work by SEA counsel, this requires additional time beyond the current deadline of Sept. 30, 2025.

OOCL's Deficient Production

It is curious that OOCL opposes this Motion. SEA is still waiting on OOCL to reproduce its prior production, Bates stamped OOCL_0000001 to OOCL_0014996, in native format with the email attachments as previously agreed. This means that OOCL has not yet fulfilled its production obligations despite its statements to the contrary in its Response to the original Motion for Enlargement of Time (Doc. 86). The Parties have a scheduled meet and confer regarding OOCL's discovery deficiencies at the end of this week.

Production Timing & Discovery Disputes

The Parties have only very recently exchanged documents, with OOCL providing its first tranche of documents in native form with attachments on Friday Sept. 26th, and SEA having provided its first tranche of documents today, Tuesday Sept. 30th. As a result of the voluminous productions, the Parties will need additional time to review and coordinate between themselves to narrow any discovery disputes.

OOCL itself admits in Respondents' Response to Complainant's Motion for Enlargement of Time, (Doc. 86, pg. 2, hereafter referred to as "OOCL's Response") that "Complainant's responses to Interrogatories were grossly inadequate, although the parties are attempting to resolve those deficiencies without the need to file a motion to compel." By OOCL's own account, discovery disputes remain unresolved and further time is necessary to address them. Far from undermining Complainant's position, Respondents' prior statements confirm that additional time will facilitate the resolution of outstanding discovery issues.

Further, since September 5th, the Parties (OOCL and SEA) have been engaged in discussions over a Confidentiality Stipulation and ESI Protocol, which SEA's counsel advised would be required before SEA produced documents to OOCL. On that same date, Sept. 5th, SEA's counsel circulated a draft Confidentiality Stipulation for OOCL's comments. The Parties only reached agreement yesterday, September 29th (Docs. 83 and 84) and the Order was entered today, Sept. 30th (Doc. 88). The arguments put forward by OOCL that SEA could or should have produced documents in advance of that Stipulation conveniently ignores this fact and the prior discussions between the Parties.

Status of OOCL's Amended Counterclaim and Third-Party Complaint

With regard to OOCL's Third-Party Complaint against SEC, on Sept. 22, 2025, the Presiding Officer granted OOCL's Unopposed Motion for Leave to File Amended Third-Party Complaint and Suspend Time to Respond to Third-Party Respondent's Motion to Dismiss, in recognition that OOCL's original Third Party Complaint was very similar to OOCL's Counterclaim against SEA, which the Commission had dismissed, but had allowed OOCL to amend (Doc. 79). The Order set a briefing schedule for the anticipated Amended Third-Party Complaint, with briefing to be completed by November 12, 2025 (*Id.*).

With regard to OOCL's Counterclaim, on July 30, 2025, the Commission ruled that OOCL's Counterclaim against SEA was affirmed as dismissed, but the Commission granted OOCL leave to file an Amended Counterclaim (Doc. 66), which OOCL subsequently did on August 13, 2025 (Doc. 69). SEA filed its Motion to Dismiss the Amended Counterclaim on September 8, 2025. OOCL's opposition to the Motion to Dismiss was filed on September 25, 2025, and SEA's reply is due on October 2, 2025.

Accordingly, the current document production deadline of Sept. 30, 2025 has arrived before the Presiding Officer has had the opportunity to fully consider and determine whether any counterclaims or third-party claims will be presented in this matter. If the Amended Counterclaim and the Amended Third-Party Complaint are dismissed, SEA and OOCL will have been put to the burden of conducting discovery on claims that did not survive motions to dismiss, defeating one of the key purposes of a motion to dismiss.

Alternatively, should those claims survive, then the matter would likely fracture into two schedules: one as between SEA and OOCL, and a later one governing OOCL and SEC. That would invite inconsistent obligations, duplicative meet-and-confers, require reopening depositions once pleadings are finalized, and drive avoidable motions to compel solely to preserve rights against deadline cutoffs.

A single coordinated schedule after the status of the Amended Counterclaim and Amended Third-Party Claim is resolved would avoid serial briefing on motions to dismiss, renewed motions after amendments, and would help to minimize discovery disputes.

IV. CONCLUSION

Accordingly, SEA respectfully submits that multiple instances of good cause exist for granting an enlargement of time to the discovery and procedural schedule, and failure to grant the requested enlargement may result in prejudice. Further, the granting of the enlargement of time will advance judicial efficiency, reduce motion practice, facilitate the independent resolution of discovery disputes, align depositions and expert analysis with complete data, and permit a more complete record for the Presiding Officer, the Commission, and the courts.

Regarding the length of a proposed extension, SEA requests a one-month extension to the discovery and procedural schedule in light of its own production obligations.

Dated: September 30, 2025

Respectfully Submitted,

MILLS BLACK LLP

By: /s/ **Peter F. Black**

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H. Allen Black
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*Counsel to Complainant, Samsung
Electronics America, Inc.*

Exhibit 1

Complainant's Second Motion for Enlargement of Time

September 30, 2025

Subject: Re: FMC Docket No. 24-17 - SEA v. OOCL

Date: Tuesday, September 23, 2025 at 21:50:03 Eastern Daylight Time

From: Peter F. Black <pblack@millsblack.com>

To: Rebecca Fenneman <rfenneman@jeffreyfenneman.com>, Raleigh, Christopher <CRaleigh@cozen.com>

CC: Sobotta, Kathryn <KSobotta@cozen.com>, Wayne Rohde <wrohde@cozen.com>, Nick Webb <nwebb@jeffreyfenneman.com>, Kaya Massey <kmassey@jeffreyfenneman.com>, Allen Black <hablack@millsblack.com>, Imran Shaukat <ishaukat@millsblack.com>

Dear Chris,

Thank you for your call earlier today. I confirm that SEA will proceed with filing its Motion for Enlargement of Time.

Very best regards,
Peter

Peter F. Black

[Mills Black LLP](#)

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From: Peter F. Black <pblack@millsblack.com>

Date: Tuesday, September 23, 2025 at 15:44

To: Rebecca Fenneman <rfenneman@jeffreyfenneman.com>, Raleigh, Christopher <CRaleigh@cozen.com>

Cc: Sobotta, Kathryn <KSobotta@cozen.com>, Wayne Rohde <wrohde@cozen.com>, Nick Webb <nwebb@jeffreyfenneman.com>, Kaya Massey <kmassey@jeffreyfenneman.com>, Allen Black <hablack@millsblack.com>, Imran Shaukat <ishaukat@millsblack.com>

Subject: Re: FMC Docket No. 24-17 - SEA v. OOCL

Dear Chris,

I left a voicemail for you on your office line but understand that you are out of the office today.

In light of the holiday, if we don't hear from you as regards the Motion for Extension of Time before 4:30pm today, SEA will proceed with the Motion on its own.

Very best regards,

Peter

Peter F. Black

[Mills Black LLP](#)

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From: Peter F. Black <pblack@millsblack.com>

Date: Monday, September 22, 2025 at 20:38

To: Rebecca Fenneman <rfenneman@jeffreyyfenneman.com>, Raleigh, Christopher <CRaleigh@cozen.com>

Cc: Sobotta, Kathryn <KSobotta@cozen.com>, Wayne Rohde <wrohde@cozen.com>, Nick Webb <nwebb@jeffreyyfenneman.com>, Kaya Massey <kmassey@jeffreyyfenneman.com>, Allen Black <hablack@millsblack.com>, Imran Shaukat <ishaukat@millsblack.com>

Subject: Re: FMC Docket No. 24-17 - SEA v. OOCL

Dear Rebecca and Chris,

Please attached for our tweaks to the ESI Protocol. We had no additional comments on the Confidentiality Stipulation and the Order looked good to us as well.

I have also attached our proposed Joint Motion for Extension of Time. In place of a specific proposed number of days, we request a conference with the ALJ to discuss the schedule. We apologize for the quick turnaround, but it would be helpful to have OOCL's comments by tomorrow evening so that we can file the Joint Motion tomorrow evening in accordance with 46 CFR 501.102.

Very best regards,

Peter

Peter F. Black

[Mills Black LLP](#)

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

1. Office of the Secretary
Federal Maritime Commission
secretary@fmc.gov
2. Hon. Richard Ambrow - *Administrative Law Judge*
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Judges@fmc.gov
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Counsel for Third-Party Respondent
 - a. James H. Hohenstein
jim.hohenstein@hplawnyc.com

Dated: September 30, 2025

By: /s/ **Peter F. Black**

Peter F. Black
MILLS BLACK LLP

*Counsel to Samsung
Electronics America, Inc.*